

Multiple Choice (10 marks)

1. Which of these statements best describes the UK Constitution?
 - (a) The UK Constitution is based on a Bill of Rights
 - (b) The UK Constitution gives the judiciary the power to overturn acts of parliament
 - (c) The UK Constitution's power is derived solely from Parliament
 - (d) The UK Constitution is codified and contained in a single document
 - (e) The UK Constitution is uncodified and can be found in a number of sources
2. Who said that "Jurisprudence is the eye of law"
 - (a) Pound
 - (b) Austin
 - (c) Savigny
 - (d) Hart
 - (e) Bentham
3. What is the function of "standard-setting in human rights diplomacy?"
 - (a) Standard-setting means setting certain standards of conduct in human rights treaties
 - (b) Standard-setting means putting forward both binding and non-binding legal standards
 - (c) Standard-setting means putting forward non-binding legal standards
 - (d) Standard-setting means enforcing human rights treaties
 - (e) Standard-setting means establishing a set of universal human rights principles
4. What was the outcome before the European Court of Human Rights in the Al-Adsani case?
 - (a) The Court held that the right to a fair trial trumped the privilege of immunity
 - (b) The Court held that the privilege of immunity was not applicable in this case
 - (c) The Court held that the right to a fair trial was not applicable in this case
 - (d) The Court held that immunities were not in conflict with the right to a fair trial
 - (e) The Court held that the case was admissible due to overriding human rights considerations
5. Which statement below best represents Durkheim's view of the function of punishment?

- (a) Vengeance.
- (b) Deterrence.
- (c) Restoration.
- (d) Moral education.
- (e) Indemnification.

True / False (10 marks)

Answer True or False

- 6. True or False: Standard-setting in human rights diplomacy refers to establishing binding legal standards that must be followed by all nations.
- 7. True or False: The original position would favor wealth over a compassionate society in its choice of social primary goods.
- 8. True or False: The defense power, when considered in isolation, does not provide a basis for enacting federal law.
- 9. True or False: The case of *Goodwin v UK* (2002) exemplifies the 'living instrument principle' as applied by the European Court of Human Rights.
- 10. True or False: Many critical legal theorists believe that law provides clear and predictable outcomes in judicial decisions.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Discuss the International Court of Justice's stance on the accumulation theory of armed attacks, evaluating whether it accommodates instances of cumulative lower intensity force.
- 12. Discuss the admissibility of newspaper evidence in a stock fraud case, analyzing its relevance to the investor's argument and the implications for constitutional law principles.

End of Paper